

granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§ 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

Tomas Ramirez-Nieves' Counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of **Plaintiff's** Counsel to be Relieved as Counsel of Record. This motion is **Granted**.

The Court will execute the Proposed Order lodged on July 8 2026 Granting Attorney Bral's Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted. The withdrawal is effective upon attorney Bral's filing the proof of service of signed order on the client and all parties.

5. 9:00 AM CASE NUMBER: C25-03485

CASE NAME: JBBAH LLC, VS. RICKY LENZ

***HEARING ON MOTION IN RE: AND NTC TO SET ASIDE DEFAULT ND DEFAULT JUDGMENT IF ENTERED**

FILED BY: LENZ, RICKY CHARLES

TENTATIVE RULING:

On April 7, 2026, Defendant on his on own behalf filed a motion to set aside the default and if entered, a default judgment. Hearing was set for August 14, 2026.

Defendant is required to serve his papers on the other side and file proof of service, that is proof that the papers were served on the opposing side. In addition, the Defendant is required to file a Proposed Answer or proposed pleading that he intends to file in the lawsuit if the default is set aside.

The court on its own motion **continues the hearing on the Defendant's motion to Set Aside Default to October 2, 2026 at 9:00 a.m.** Defendant must serve his motion papers on the Plaintiff, including a proposed Answer or other pleading, on or before September 10, 2026.

On March 30, 2026, Defendant and Robin Acosta a person who described herself as Defendant's significant other appeared at the Case Management Conference hearing. Ms. Acosta stated to the court that Defendant has dementia.

The court informed Defendant that Plaintiff had filed a motion for default judgment transferring title pursuant to a purchase and sale agreement, that the hearing was set for October 2, 2026, and that Defendant's opposition papers were due to be filed and served September 18, 2026.

6. 9:00 AM CASE NUMBER: C25-03645
CASE NAME: ROLNARD CLEARY VS. GLORIA CARBALLO
***HEARING ON MOTION IN RE: LEAVE TO FILE SECOND AMENDED COMPLAINT**
FILED BY: CLEARY, ROLNARD S
TENTATIVE RULING:

The unopposed motion to file a Second Amended Complaint is **granted**. Plaintiff shall separately file the Second Amended Complaint within 15 days of this August 14, 2026 order.

7. 9:00 AM CASE NUMBER: C26-00103
CASE NAME: RODRIGO GARCIA VS. FIGUEROA TANK LINES INC.,
HEARING ON DEMURRER TO: COMPLAINT - CON'TD PER TR OF 6/26/26
FILED BY: SAMSARA, INC.,
TENTATIVE RULING:

Defendant Samsara Inc.'s Demurrer to Plaintiff Rodrigo Garcia's Complaint, First, Third and Fourth Cause of Action, is **sustained with leave to amend**. Defendant shall prepare the order and file and serve notice of entry of order. Plaintiff shall have 30 days from service of notice of entry of order in which to file an amended complaint.

Background and Allegations of the Complaint

Rodrigo Garcia was hired by Figueroa Tank Lines Inc. as a fuel truck driver on or about December 1, 2024. (Plf.'s January 9, 2026 Complaint ¶ 8.) His duties included operating fuel tanker trucks, performing pre- and post-trip safety inspections, loading and unloading fuel, complying with DOT regulations, and ensuring the safe transport of hazardous materials. (Id. ¶ 9.) Because he transported highly flammable and dangerous materials, his position carried heightened safety obligations, and he was trained and understood that drivers have an independent duty to refuse unsafe equipment, report mechanical defects, and decline to operate vehicles posing a risk to public safety. (Id. ¶ 10.)

Beginning within the first several months of his employment, Plaintiff identified and reported recurring safety issues with Figueroa's fleet to management, including owner Marco Figueroa and his son Kevin Figueroa. (Compl. ¶ 11.) These included tires with visible damage or slash marks, inadequate tire pressure and air leaks, missing antifreeze and overheating risks, mechanical defects rendering trucks unsafe for operation, and failure to timely repair trucks placed out of service. (Ibid.) Management dismissed Plaintiff's concerns, accused him of exaggerating safety risks, pressured him to continue driving, and subjected him to verbal abuse and ridicule, including telling him to "suck it up." (Id. ¶ 12.) Plaintiff reasonably believed that operating unsafe fuel tankers violated DOT regulations, California workplace safety laws, and fundamental public safety principles. (Id. ¶ 13.)

Plaintiff's assigned often required 12-14 hour shifts, leaving insufficient time for legally compliant meal and rest breaks. (Compl. ¶ 14.) He repeatedly complained to management that the volume of